

COMMITTEE ON MILITARY AFFAIRS AND BORDER SECURITY  
SENATE AMENDMENTS TO S.B. 1618  
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 26-261, Arizona Revised Statutes, is amended to  
3 read:

4 26-261. Military affairs commission; confidential discussions  
5 and information; definition

6 A. The military affairs commission is established. The commission  
7 membership consists of:

8 1. ~~Sixteen~~ **THE FOLLOWING** members who are appointed by the governor  
9 ~~and who include the following:~~

10 ~~(a) Twelve members who reside in a community in which a military~~  
11 ~~installation is located. Of this group, six members shall have expertise~~  
12 ~~in military affairs and six members shall be local elected officials.~~

13 ~~(b) Four members who represent private property interests in the~~  
14 ~~territory in the vicinity as defined in section 28-8461 or in a community~~  
15 ~~in which a military installation is located.~~

16 ~~2. One member who represents private property interests in the~~  
17 ~~territory in the vicinity as defined in section 28-8461 or in a community~~  
18 ~~in which a military installation is located and who is appointed by the~~  
19 ~~president of the senate.~~

20 ~~3. One member who represents private property interests in the~~  
21 ~~territory in the vicinity as defined in section 28-8461 or in a community~~  
22 ~~in which a military installation is located and who is appointed by the~~  
23 ~~speaker of the house of representatives.~~

24 (a) **FOUR MEMBERS WHO ARE CURRENTLY SERVING IN OR, WITHIN**  
25 **[THREE][FIVE] YEARS PRECEDING THE EFFECTIVE DATE OF THIS AMENDMENT TO THIS**  
26 **SECTION, RETIRED FROM THE UNITED STATES ARMED FORCES OR THE NATIONAL**  
27 **GUARD, WHO ARE EXPERIENCED IN WORKING WITH THE UNITED STATES DEPARTMENT OF**  
28 **DEFENSE PLANNING, PROGRAMMING, BUDGETING AND EXECUTION PROCESSES, OR**  
29 **SUCCESSOR PROCESSES, AND WHO ARE AT LEAST THE FOLLOWING RANKS:**

1 (i) IF A COMMISSIONED OFFICER, A LIEUTENANT ~~[IN THE UNITED STATES~~  
2 ~~NAVY]~~ OR CAPTAIN ~~[IN ANOTHER BRANCH OF THE ARMED FORCES OF THE UNITED~~  
3 ~~STATES]~~.  
4 (ii) IF A WARRANT OFFICER, A CHIEF WARRANT OFFICER TWO.  
5 (iii) IF AN ENLISTED NONCOMMISSIONED OFFICER, A MASTER SERGEANT,  
6 FIRST SERGEANT, SENIOR CHIEF PETTY OFFICER OR SENIOR MASTER SERGEANT.  
7 (iv) SENIOR EXECUTIVE SERVICE.  
8 (b) ~~[FIVE]~~[SEVEN] MEMBERS WHO REPRESENT EACH COMMUNITY MILITARY  
9 SUPPORT ORGANIZATION RECOGNIZED BY A MILITARY INSTALLATION IN THIS STATE  
10 OR THE NATIONAL GUARD.  
11 (c) TWO MEMBERS WHO HAVE CONGRESSIONAL EXPERIENCE AND EXPERTISE ON  
12 MILITARY AND DEFENSE POLICY.  
13 (d) TWO MEMBERS WHO ARE FROM ORGANIZATIONS THAT REPRESENT MEMBERS  
14 OF THE NATIONAL DEFENSE AND ACADEMIC RESEARCH AND DEVELOPMENT INDUSTRIES.  
15 (e) TWO MEMBERS WHO ARE FROM ORGANIZATIONS THAT REPRESENT MEMBERS  
16 WITHIN THE NATIONAL DEFENSE AND AEROSPACE INDUSTRIES.  
17 2. THE PRESIDENT OF THE SENATE OR THE PRESIDENT'S DESIGNEE.  
18 3. THE SPEAKER OF THE HOUSE OF REPRESENTATIVES OR THE SPEAKER'S  
19 DESIGNEE.  
20 4. ~~Four~~ ~~[THE FOLLOWING]~~[SIX] nonvoting advisory members who are not  
21 counted for the purpose of determining a quorum, consisting of:  
22 (a) The adjutant general or a designee of the adjutant general.  
23 ~~(b) A representative of a military installation commander who is~~  
24 ~~appointed by the governor.~~  
25 (b) THE CHAIRPERSON OR COCHAIRPERSON OF THE ARIZONA COMMANDERS  
26 SUMMIT SUCCESSOR ORGANIZATION THAT REGULARLY CONVENES ALL MILITARY  
27 INSTALLATION COMMANDERS IN THIS STATE.  
28 ~~[(c) A representative from a federal agency involved in land use~~  
29 ~~issues who is appointed by the governor.]~~  
30 [(c) TWO MEMBERS WHO ARE FROM A STATE OR FEDERAL AGENCY REQUIRED  
31 FOR COMMISSION MATTERS AND WHO ARE APPOINTED BY THE COCHAIRPERSONS OF THE  
32 MILITARY AFFAIRS COMMISSION.]  
33 ~~[(d) The state land commissioner or a designee of the~~  
34 ~~commissioner.]~~  
35 ~~[(e)]~~ [(d)] THE CHIEF EXECUTIVE OFFICER OF THE ARIZONA COMMERCE  
36 AUTHORITY OR THE CHIEF EXECUTIVE OFFICER'S DESIGNEE.  
37 ~~[(f)]~~ [(e)] THE CHAIRPERSON OF THE ARIZONA BOARD OF REGENTS OR THE  
38 CHAIRPERSON'S DESIGNEE.  
39 ~~[(g) THE DIRECTOR OF THE DEPARTMENT OF TRANSPORTATION OR THE~~  
40 ~~DIRECTOR'S DESIGNEE.]~~  
41 B. The military affairs commission shall have geographic diversity  
42 in its membership. The governor shall designate two of the governor's  
43 appointees as cochairpersons of the commission. UNLESS OTHERWISE  
44 PROVIDED, MEMBERS or designees of the commission shall not send alternates  
45 to represent them at commission meetings. The voting members shall serve  
46 six-year terms.

1 C. The department of emergency and military affairs AND THE OFFICE  
2 OF DEFENSE INNOVATION shall JOINTLY staff the commission.

3 D. The commission shall:

4 1. Meet at least ~~[annually]~~[TWICE EACH YEAR].

5 2. Meet on a regular basis with the governor, the president of the  
6 senate and the speaker of the house of representatives, either  
7 individually or collectively, to provide recommendations on military  
8 issues AND INDUSTRIES RELATED TO NATIONAL DEFENSE and report on the  
9 progress of the military affairs commission.

10 3. Annually meet with the appropriate legislative committees that  
11 have jurisdiction over military installations.

12 4. Advise the governor and the legislature on matters affecting the  
13 operational viability of Arizona military facilities, including military  
14 installations, military training routes, military restricted airspace,  
15 military ranges or areas under the jurisdiction of ~~an active unit of the~~  
16 ANY uniformed armed services of the United States or any ~~reserve or~~  
17 national guard component ~~of the uniformed armed services of the United~~  
18 ~~States~~ OF THIS STATE [, AS WELL AS ANY MATTERS AFFECTING THE RETENTION OF  
19 EXISTING AND ATTRACTION OF NEW DEFENSE-RELATED BUSINESSES].

20 ~~[5. Develop criteria, including accountability requirements, for~~  
21 ~~awarding monies from the military installation fund established by section~~  
22 ~~26-262.]~~

23 ~~6. SUBJECT TO LEGISLATIVE APPROPRIATION, DO ALL OF THE FOLLOWING:~~

24 ~~(a) Review applications for monies to be awarded from the military~~  
25 ~~installation fund.]~~

26 ~~7. (b) Annually recommend to the department of emergency and~~  
27 ~~military affairs a priority listing of monies with available resources.]~~

28 ~~8. (c) Recommend to the department of emergency and military~~  
29 ~~affairs how the monies in the military installation fund should be~~  
30 ~~awarded.]~~

31 ~~9.~~ [7.][5.] Proactively assist with coordination among the United  
32 States military operating in Arizona, the congressional delegation, the  
33 governor, the state legislature and state and local leaders.

34 ~~10.~~ [8.][6.] PROACTIVELY recommend executive, legislative and  
35 federal actions necessary to sustain military operations and enhance ~~the~~  
36 THIS state's preparedness to ~~respond to potential~~ ATTRACT new missions and  
37 prevent military facilities from closure or downsizing.

38 [7. PROACTIVELY RECOMMEND EXECUTIVE, LEGISLATIVE AND FEDERAL ACTIONS  
39 NECESSARY TO RETAIN EXISTING AND ATTRACT NEW DEFENSE-RELATED BUSINESSES.]

40 ~~11.~~ [9.][8.] Study issues relating to veterans, active duty,  
41 national guard~~[,]~~ [and] reserve members of the United States armed  
42 forces~~[,]~~ [AND] MILITARY FAMILIES and other military quality of life  
43 issues.

44 [10.][9.] RECOMMEND TO THE ARIZONA FINANCE AUTHORITY AND THE ARIZONA  
45 INDUSTRIAL DEVELOPMENT AUTHORITY PROJECTS IN THIS STATE THAT REQUIRE  
46 FUNDING AND THAT DO ~~[Att]~~ [ANY] OF THE FOLLOWING:

1 (a) ENHANCE THE MILITARY VALUE OF AREA MILITARY INSTALLATIONS AND  
2 DEFENSE FACILITIES.

3 (b) PROVIDE ASSISTANCE TO COMMUNITIES THAT ARE NEGATIVELY IMPACTED  
4 BY BASE REALIGNMENTS OR CLOSURE OR BY LOSS OF A MISSION FOR AN ECONOMIC  
5 DEVELOPMENT PROJECT.

6 (c) PROVIDE ASSISTANCE TO COMMUNITIES THAT ARE POSITIVELY IMPACTED  
7 BY BASE REALIGNMENTS OR CLOSURE FOR AN INFRASTRUCTURE PROJECT.

8 (d) SUPPLEMENT THE COMMUNITY ECONOMIC REDEVELOPMENT VALUE OF A  
9 CLOSED MILITARY INSTALLATION OR DEFENSE FACILITY.

10 ~~[11.]~~[10.] SUBMIT A REPORT ON OR BEFORE SEPTEMBER 1 OF EACH  
11 EVEN-NUMBERED YEAR TO THE GOVERNOR, THE PRESIDENT OF THE SENATE AND THE  
12 SPEAKER OF THE HOUSE OF REPRESENTATIVES ABOUT MILITARY INSTALLATIONS AND  
13 DEFENSE-RELATED BUSINESSES IN THIS STATE. THE REPORT MUST INCLUDE ALL OF  
14 THE FOLLOWING:

15 (a) AN ECONOMIC IMPACT STATEMENT DESCRIBING IN DETAIL THE EFFECT OF  
16 THE MILITARY AND DEFENSE INDUSTRY ON THE ECONOMY OF THIS STATE.

17 (b) A STATEWIDE ASSESSMENT OF FEDERAL AND NATIONAL GUARD MILITARY  
18 INSTALLATIONS AND CURRENT MISSIONS.

19 (c) A STATEWIDE STRATEGY TO ATTRACT NEW MILITARY MISSIONS AND  
20 DEFENSE-RELATED BUSINESS, INCLUDING SPECIFIC ACTIONS THAT ADD MILITARY  
21 VALUE TO EXISTING MILITARY INSTALLATIONS.

22 (d) A LIST OF STATE AND FEDERAL ACTIVITIES THAT HAVE A SIGNIFICANT  
23 IMPACT ON ACTIVE MILITARY INSTALLATIONS AND CURRENT MISSIONS.

24 (e) A STATEMENT IDENTIFYING ALL OF THE FOLLOWING:

25 (i) THE STATE AND FEDERAL PROGRAMS AND SERVICES THAT ASSIST  
26 COMMUNITIES IMPACTED BY MILITARY BASE CLOSURES OR REALIGNMENTS AND THE  
27 EFFORTS TO COORDINATE THOSE PROGRAMS.

28 (ii) THE EFFORTS TO COORDINATE STATE AGENCY PROGRAMS AND SERVICES  
29 THAT ASSIST COMMUNITIES IN RETAINING ACTIVE MILITARY INSTALLATIONS AND  
30 CURRENT MISSIONS.

31 (iii) AN EVALUATION OF INITIATIVES TO RETAIN EXISTING AND ATTRACT  
32 NEW DEFENSE-RELATED BUSINESSES.

33 [11. DEVELOP CRITERIA, INCLUDING ACCOUNTABILITY REQUIREMENTS, FOR  
34 AWARDING MONIES FROM THE MILITARY INSTALLATION FUND ESTABLISHED BY SECTION  
35 26-262.

36 12. SUBJECT TO LEGISLATIVE APPROPRIATION, DO ALL OF THE FOLLOWING  
37 WITH RESPECT TO THE MILITARY INSTALLATION FUND ESTABLISHED BY SECTION  
38 26-262:

39 (a) REVIEW APPLICATIONS FOR MONIES TO BE AWARDED.

40 (b) ANNUALLY RECOMMEND TO THE DEPARTMENT OF EMERGENCY AND MILITARY  
41 AFFAIRS A PRIORITY LISTING OF MONIES WITH AVAILABLE RESOURCES.

42 (c) RECOMMEND TO THE DEPARTMENT OF EMERGENCY AND MILITARY AFFAIRS  
43 HOW MONIES SHOULD BE AWARDED.]

44 E. STATE AGENCIES SHALL COOPERATE WITH AND ASSIST THE COMMISSION  
45 WITH THE FOLLOWING:

46 1. PREPARING THE REPORT REQUIRED BY SUBSECTION D, PARAGRAPH  
47 ~~[11.]~~[10] OF THIS SECTION, INCLUDING PROVIDING INFORMATION ABOUT

1 REGULATIONS, POLICIES, PROGRAMS AND SERVICES THAT MAY IMPACT COMMUNITIES  
2 DEPENDENT ON MILITARY INSTALLATIONS, DEFENSE-RELATED BUSINESSES AND THE  
3 VIABILITY OF EXISTING MILITARY MISSIONS IN THIS STATE.

4 2. SUPPORTING AN INSTALLATION COMMANDER WHO REQUESTS ASSISTANCE IN  
5 PREPARING AN EVALUATION OF THAT INSTALLATION BASED ON CRITERIA FOR THE  
6 INSTALLATION BY THE UNITED STATES DEPARTMENT OF DEFENSE FOR MISSION  
7 RETENTION OR ASSIGNMENT OR THE BASE REALIGNMENT AND CLOSURE PROCESS.

8 ~~F.~~ F. Discussions that are related to the federal government's  
9 process to determine the closure, realignment, relocation, expansion or  
10 forced structure reduction of military installations and to proprietary  
11 alternatives to this state's military base closure or realignment  
12 strategies are not subject to title 38, chapter 3, article 3.1.

13 ~~F.~~ G. Information that is developed or obtained by the commission  
14 AND that pertains to proprietary strategies of the commission or that is  
15 related to the relocation of military units is confidential and is not  
16 subject to title 39, chapter 1, including documents related to the federal  
17 government's process to determine the closure, realignment, relocation,  
18 expansion or forced structure reduction of military installations until  
19 the federal government has issued a final, unappealable decision in that  
20 process or, in the event of litigation, a court of competent jurisdiction  
21 has entered a final, unappealable order regarding the closure,  
22 realignment, relocation, expansion or forced structure reduction of the  
23 military installations. If the commission enters into a confidentiality  
24 agreement with a third party, the commission may disclose information that  
25 is deemed confidential pursuant to this subsection to that third party.

26 ~~G.~~ H. For the purposes of this section, "military installation"  
27 means a military airport or ancillary military facility as defined in  
28 section 28-8461 or any real property that services, supports or is used by  
29 the military.

30 Sec. 2. Section 26-262, Arizona Revised Statutes, is amended to  
31 read:

32 26-262. Military installation fund; rules; application  
33 review; award and use of monies; reporting  
34 requirements; definitions

35 A. The military installation fund is established consisting of  
36 revenues made available to the fund from any lawful source. The adjutant  
37 general shall administer the fund. On notice from the adjutant general,  
38 the state treasurer shall invest and divest monies in the fund as provided  
39 by section 35-313, and monies earned from investment shall be credited to  
40 the fund. The fund is exempt from the provisions of section 35-190  
41 relating to lapsing of appropriations.

42 B. Monies in the fund are continuously appropriated for the  
43 purposes of this section.

44 C. The department, in conjunction with the military affairs  
45 commission established by section 26-261, shall adopt by rule procedures  
46 for ACQUIRING PROPERTY AND FOR receiving and evaluating applications and  
47 awarding the monies as provided by subsection G of this section. If

1 ACQUISITION PROPOSALS AND applications for monies exceed the amount  
2 available in the fund, the department may request applicants to reduce the  
3 amount of MONIES REQUESTED IN the applications or deny or award reduced  
4 amounts.

5 D. The department shall PREPARE EACH ACQUISITION PROPOSAL AND  
6 receive each application for fund monies and shall forward each  
7 ACQUISITION PROPOSAL AND application to the military affairs commission.  
8 The military affairs commission shall review each ACQUISITION PROPOSAL AND  
9 application and recommend to the department ~~both~~ ALL of the following:

10 1. Each applicant that should be awarded monies from the fund.

11 2. The dollar amount that each applicant pursuant to paragraph 1 of  
12 this subsection should be awarded from the fund.

13 3. EACH ACQUISITION, IN THE NAME OF THIS STATE, BY GIFT, GRANT,  
14 PURCHASE OR ANY OTHER LAWFUL MANNER, OF REAL PROPERTY, PROPERTY RIGHTS AND  
15 RELATED BUILDINGS AND INFRASTRUCTURE THAT IS VITAL TO THE PRESERVATION OR  
16 ENHANCEMENT OF A MILITARY INSTALLATION IN A HIGH NOISE OR ACCIDENT  
17 POTENTIAL ZONE AS DEFINED IN SECTION 28-8461 OR IN AN AREA THAT IS VITAL  
18 TO THE OPERATION AND SUPPORT OF A MILITARY INSTALLATION IN ACCORDANCE WITH  
19 SUBSECTION G, PARAGRAPH 1 OF THIS SECTION.

20 E. The department shall consider the military affairs commission's  
21 recommendations and shall decide how the monies in the fund ~~shall~~ WILL be  
22 ~~awarded~~ DISBURSED among the ACQUISITION PROPOSALS AND FUND  
23 applicants. The department, after reviewing the recommendations by the  
24 military affairs commission, shall make the monies in the fund available  
25 for the purpose of military installation preservation and enhancement  
26 projects. Except as provided in subsection F of this section, after the  
27 department makes ~~an award~~ A decision the department shall ~~award~~ DISBURSE  
28 the monies.

29 F. If the department does not comply with the military affairs  
30 commission's recommendation for the ~~awards~~ DISBURSEMENTS, within five days  
31 after the department's decision the department shall report in writing to  
32 the military affairs commission, the president of the senate, the speaker  
33 of the house of representatives and the governor. The report shall  
34 include the ~~award~~ DISBURSEMENT decision of the department and the  
35 recommendation of the military affairs commission. The department shall  
36 not distribute monies from the fund to the applicants for at least sixty  
37 days after the report is received.

38 G. The department shall:

39 1. Award UP TO eighty percent of the monies in the fund for the  
40 following purposes, except that up to twenty percent of this amount may be  
41 ~~awarded~~ DISBURSED to cities, towns and counties for the purpose of  
42 acquiring private land ~~for the purposes~~ AS prescribed in paragraph 2 of  
43 this subsection:

44 (a) Acquisition of private property for the purpose of preserving a  
45 military installation.

46 (b) Acquisition of real estate and rights to real estate and  
47 otherwise preserving real estate from development or mitigating impacts on

1 development in high noise or accident potential zones as defined in  
2 section 28-8461 ~~and~~ OR in areas as required to support a military  
3 installation.

4 (c) Acquisition of real estate, property rights and related  
5 infrastructure that are vital to ~~the preservation~~ PRESERVING or  
6 ~~enhancement of~~ ENHANCING a military installation.

7 (d) Structural renovations or construction of building  
8 modifications or improvements that mitigate or attenuate impacts in high  
9 noise or accident potential zones.

10 (e) Removal of structures or improvements that are necessary ~~for~~  
11 ~~acquisition of~~ TO ACQUIRE private property for the purpose of preserving a  
12 military installation.

13 (f) Management of acquired property that is necessary to preserve  
14 and enhance military missions and military installations.

15 2. Except as provided by subsection M of this section, ~~award~~  
16 DISBURSE twenty percent of the monies in the fund to cities, towns and  
17 counties for:

18 (a) Military installation preservation and enhancement projects or  
19 analytical reports or studies that are requested by federal or state  
20 agencies or military facilities in this state.

21 (b) Investment in or construction of capital improvements or  
22 infrastructure for the purpose of preserving a military installation.

23 (c) Structural renovations or construction of building  
24 modifications or improvements that mitigate or attenuate impacts in high  
25 noise or accident potential zones.

26 (d) Removal of structures or improvements that are necessary ~~for~~  
27 ~~acquisition of~~ TO ACQUIRE private property for the purpose of preserving a  
28 military installation.

29 (e) Management of acquired property that is necessary to preserve  
30 and enhance military missions and military installations.

31 H. Before ~~awarding~~ DISBURSING monies pursuant to subsection G of  
32 this section, the department shall submit a report of the proposed ~~awards~~  
33 DISBURSEMENTS to the joint committee on capital review for review. The  
34 legislature shall review the distribution formula prescribed in subsection  
35 G of this section at least once every four years.

36 I. Monies in the fund may be ~~awarded~~ DISBURSED for debt service on  
37 bonds issued by a political subdivision for the purpose of acquisition of  
38 private property for the purpose of preserving a military airport or  
39 ancillary military facility as defined in section 28-8461 if the land  
40 acquisition occurs after December 31, 2004.

41 J. The department shall annually report the ~~awards~~ DISBURSEMENTS  
42 made pursuant to this section. The report shall be in writing and shall  
43 be sent to the president of the senate, the speaker of the house of  
44 representatives and the governor. The department shall send a copy of  
45 this report to the secretary of state.

46 K. The department may:

1           1. **NOTWITHSTANDING SECTION 37-803**, transfer any real estate,  
2 property rights and related infrastructure that are acquired pursuant to  
3 this section to any other governmental agency for the purposes of  
4 preserving or enhancing military installations in this state.

5           2. Sell or otherwise dispose of any real estate, property rights  
6 and related infrastructure **THAT ARE** acquired pursuant to this  
7 section. The conveyance shall be made to the highest and most responsible  
8 bidder at a public sale held for that purpose.

9           3. After establishing, laying out or substantially completing an  
10 improvement to real property, convey the real property or any interest in  
11 the real property that the department determines is not necessary, useful  
12 or convenient for the use of the improvement by the department. The  
13 conveyance shall be made to the highest and most responsible bidder at a  
14 public sale held for that purpose.

15           4. Lease or sublease at fair rental value any real estate or  
16 related infrastructure that is acquired pursuant to this section. A lease  
17 or sublease that is granted pursuant to this paragraph is exempt from  
18 section 41-2752.

19           L. Before any conveyance, lease or sublease pursuant to subsection  
20 K, paragraph 2, 3 or 4 of this section, the department shall ensure that  
21 the use or development of any real estate, property rights and related  
22 infrastructure, real property or improvements to real property complies  
23 with section 28-8481.

24           M. If monies remain after the ~~award~~ **DISBURSEMENT** of monies pursuant  
25 to subsection G, paragraph 2 of this section, the department may use the  
26 remaining monies and any monies received pursuant to subsection K,  
27 paragraphs 2, 3 and 4 of this section for either of the following:

28           1. The purposes prescribed in subsection G, paragraph 1 of this  
29 section.

30           2. Projects or studies necessary to preserve or enhance military  
31 missions and military installations in this state.

32           N. **NOTWITHSTANDING SECTION 37-803**, any agency of this state may  
33 accept title to and manage real estate, property rights and related  
34 infrastructure that are acquired pursuant to this section.

35           O. For the purposes of this section:

36           1. "Department" means the department of emergency and military  
37 affairs.

38           2. "Military installation" has the same meaning prescribed in  
39 section 26-261.

40           Sec. 3. Title 26, chapter 1, article 7, Arizona Revised Statutes,  
41 is amended by adding section 26-264, to read:

42           **26-264. Military affairs commission fund**

43           **THE MILITARY AFFAIRS COMMISSION FUND IS ESTABLISHED CONSISTING OF**  
44 **LEGISLATIVE APPROPRIATIONS, GIFTS, DONATIONS, CONTRIBUTIONS, GRANTS AND**  
45 **MONIES MADE AVAILABLE TO THE FUND FROM ANY LAWFUL SOURCE TO SUPPORT THE**  
46 **ACTIVITIES OF THE MILITARY AFFAIRS COMMISSION. THE DEPARTMENT OF**  
47 **EMERGENCY AND MILITARY AFFAIRS SHALL ADMINISTER THE FUND. MONIES IN THE**



1 FUND ARE CONTINUOUSLY APPROPRIATED AND ARE EXEMPT FROM THE PROVISIONS OF  
2 SECTION 35-190 RELATING TO LAPSING OF APPROPRIATIONS. ON NOTICE FROM THE  
3 ADJUTANT GENERAL, THE STATE TREASURER SHALL INVEST AND DIVEST MONIES IN  
4 THE FUND AS PROVIDED BY SECTION 35-313, AND MONIES EARNED FROM INVESTMENT  
5 SHALL BE CREDITED TO THE FUND.

6 Sec. 4. Retention of members

7 Notwithstanding section 26-261, Arizona Revised Statutes, as amended  
8 by this act, all persons serving as members of the military affairs  
9 commission on the effective date of this act may continue to serve until  
10 the expiration of their normal terms. All subsequent appointments shall be  
11 made as prescribed by statute.

12 Enroll and engross to conform

13 Amend title to conform

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